

--SUMMARY--

Decision No. 75/18

15-May-2018

J.Dimovski - B.Davis - K.Hoskin

- Permanent impairment {NEL} (degree of impairment) (shoulder)
- Subsequent incidents (outside work)

The worker suffered a right knee injury in January 2004, for which the Board granted the worker a 16% NEL award. He suffered a right shoulder injury in December 2009, for which the Board granted a 2% NEL award.

In this decision, the Panel confirmed the 2% NEL award for right shoulder impairment. The Panel also denied entitlement for a further shoulder injury suffered in February 2013, when the worker slipped and fell on stairs at home. Evidence did not establish that the accident at home was related to the compensable 2004 knee injury.

6 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w2918s]

Style of Cause:

Neutral Citation: 2018 ONWSIAT 1602



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 75/18

BEFORE:

J. Dimovski: Vice-Chair
B. Davis: Member Representative of Employers
K. Hoskin: Member Representative of Workers

HEARING:

January 9, 2018 at London
Oral

DATE OF DECISION:

May 15, 2018

NEUTRAL CITATION:

2018 ONWSIAT 1602

DECISION(S) UNDER APPEAL: WSIB ARO decisions dated May 26, 2015 and March 10, 2016

APPEARANCES:

For the worker: Self-represented

For the employer: B. Channe, Lawyer

Interpreter: N/A

REASONS

(i) Issues

[1] The issues in dispute are as follows:

- whether the quantum of the worker's 2% Non-Economic Loss (NEL) award for a right shoulder injury arising out of a 2009 workplace accident is appropriate; and
- whether the worker has entitlement for a fall in February 2013 and a resulting right shoulder dislocation and brachial plexus injury as a result of a second accident arising out of a January 5, 2004 workplace accident.

(ii) Background to appeal proceedings

[2] The Board recognized that on January 5, 2004, this now 61 year old worker sustained a right knee injury in the course of his employment as a result of a workplace accident. He subsequently underwent a right knee debridement with a medial meniscectomy. With a maximum medical recovery (MMR) date of May 2006, the Board recognized the worker had a permanent impairment warranting a 16% NEL award for patella-femoral syndrome.

[3] With an accident date of December 18, 2009, the Board accepted the worker injured his right shoulder. The Board accepted the worker had sustained a supraspinatus tendon tear entitling him to a NEL award. The Board identified the MMR date as September 16, 2010 (see, Board memorandum dated April 4, 2011).

[4] As a result of a NEL Evaluation dated September 25, 2012, the Board provided the worker with a 2% NEL award. The worker appealed this decision but it was upheld in the 2015 ARO decision.

[5] In a letter dated March 31, 2014, the Board denied the worker's request for a NEL re-determination. There is no final decision by the Board which addressed the worker's entitlement to a NEL re-determination.

[6] In February 2013, the worker slipped and fell at home and caused further injury to his right shoulder. He claimed his 2004 right knee injury had caused him to fall causing a right shoulder dislocation and brachial plexus injury. The Board determined that the worker's fall at home was not caused by the worker's right knee. As a result, the Board denied the worker had entitlement to a secondary condition. This decision was upheld by the 2016 ARO decision.

(iii) Analysis

[7] As this appeal relates to workplace accidents and an accident claim occurring after January 1, 1998, the the *Workplace Safety and Insurance Act, 1997* (the WSIA) is applicable to this appeal. All statutory references in this decision are to the WSIA, as amended, unless otherwise stated.

[8] In accordance with s. 126, I have applied applicable Board policy to this appeal.

(a) NEL Quantum

- [9] Section 46 of the WSIA provides that if a worker's injury results in permanent impairment, the worker is entitled to compensation for non-economic loss. "Impairment" means a physical or functional abnormality or loss (including disfigurement) which results from an injury and any psychological damage arising from the abnormality or loss. "Permanent impairment" means impairment that continues to exist after the worker reaches maximum medical recovery.
- [10] Legislation and Board policy provide that the degree of a worker's permanent impairment is determined in accordance with the prescribed rating schedule or criteria, any medical assessments, and having regard to the health information on file. The prescribed rating schedule for most impairments is the American Medical Association's *Guides to the Evaluation of Permanent Impairment*, 3rd edition (revised) (the AMA Guides). For this appeal, the AMA Guides are the applicable rating schedule.
- [11] The worker's right shoulder impairment was rated in reference to medical evidence in the case record. In particular, as noted in the NEL Evaluation dated January 16, 2013, the worker's rating was based on range of motion findings set out in Dr. Pugh's report dated September 16, 2010 and an MRI report dated May 22, 2010.
- [12] The Board rated the worker's abnormal motion in the shoulder caused by the supraspinatus tear. In particular, the worker's maximum flexion, measured at 140 degrees, and maximum external rotation measured at more than 45 degrees, in accordance with the AMA Guides, resulted in a 4% upper extremity rating. This translates into a 2% whole person award.
- [13] We appreciate the worker's belief that his NEL rating should warrant a higher rating. However, the worker appeals the quantum of his NEL award based on a rating of his impairment at a specific time; a time most approximate to his MMR date of September 16, 2010. Thus, we must determine whether the balance of evidence from around the time of his NEL rating supported a different NEL rating.
- [14] In his report dated September 16, 2010, Dr. Pugh opined the worker's presentation was in "keeping with a right massive rotator cuff tear that is currently asymptomatic and non-repairable". Further, Dr. Pugh noted the following:
- On examination, the right shoulder has an abduction of 170 [degrees], forward flexion of 140 [degrees], external rotation of 45 [degrees], and 3-4/5 strength in external rotation.
- [15] In a previous report dated June 8, 2010, Dr. Alshaya (resident for Dr. Pugh) noted the worker had full range of motion except for an external rotation of 10 degrees. In a subsequent report dated April 8, 2013, and thus after the worker's February incident at home, Dr. C. Ballyk noted that during examination of the worker she could "almost get full range" in the right shoulder though it was weak. Given all this, we are satisfied that the worker's permanent impairment was appropriately rated under the AMA Guides.
- [16] We acknowledge in a Board memorandum dated June 29, 2012, the Case Manager indicates the worker's MMR date is January 14, 2011 based on a report by Dr. Williamson. The Board's reference to an MMR date of January 14, 2011 appears to have been made in error. In any event, given Dr. Williamson's report provides no range of motion measurements or other ratable impairment under the AMA Guides, and as there is no medical evidence of substance approximate to Dr. Pugh's September 2010 report to support the worker's permanent impairment

was worse than rated by the NEL Clinical Specialist, and in the absence of contradictory objective evidence, we find we must deny the worker's appeal on this issue.

[17] We preferred the objective medical evidence approximate to the MMR date over the worker's claims because it was derived from physical examination of the worker during the relevant time for this appeal.

[18] If the worker believes he has had a permanent and significant deterioration in his permanent impairment since his MMR date, he may seek a NEL re-determination from the Board.

(b) Entitlement to a Secondary Condition

[19] In February 2013, while at home, the worker was walking down a narrow staircase, when he lost his balance, fell, and sustained injuries. The issue on appeal was framed broadly to include initial entitlement for the incident at home as secondary to the knee impairment arising from the 2004 workplace accident. The worker claims he lost his balance due to his work-related knee injury. As the worker's fall in February 2013 occurred at home, there is no basis to recognize an accident occurred in the workplace. Accordingly, we find there is no initial entitlement to benefits for the worker's home accident.

[20] The question directly addressed by the ARO and appealed at the Tribunal is whether the worker's compensable right knee significantly contributed to the worker's fall at home. *Operational Policy Manual (OPM)* Document No. 15-05-01 entitled "Resulting from Work-Related Disability/Impairment" provides that "workers sustaining secondary conditions that are causally linked to the work-related injury will derive benefits to compensate for the further aggravation of the work-related impairment or for new injuries".

[21] In a report dated July 2, 2015, Dr. Pugh supported the worker's claim. Dr. Pugh wrote, in part:

It is important to realize that his shoulder injury occurred because he tripped on a stairwell. This was due to a previous right knee injury which was work related. He periodically has giving way sensations and instability affecting his knee. This is what occurred on the stairwell.

[22] The mechanics of the home accident differ from the worker's prior statements. In an Intent to Object Form dated November 4, 2014, the worker stated, in part:

My entitlement to a secondary accident was to do with stepping on my grandson's toy truck. When I stepped on the truck and started to fall down the stairs I reached and tried to grab the stair rail to stop from falling....

[23] While he maintained he lost his balance due to his right knee injury, the worker's description of his fall does not reasonably correspond with his claim. He described slipping and falling back into the air before landing. Had his leg given out, we would have expected him to fall forward given when he stepped forward going down the stairs, the inability to put any weight on his lead leg would have propelled him forward due to his momentum. In any event, at times, the worker stated he could not recollect specific details of the accident. In the end, we found his testimony inconsistent as he tried to explain his prior references to falling because he slipped on a toy.

[24] We acknowledge that there is medical reporting which noted the worker's complaints of leg weakness. However, there is no medical evidence of substance, especially approximate to the 2013 home accident, which indicated the worker's right knee would or was prone to giving away. Even if the worker's right knee was prone to giving out, there is a variance in the worker's claim and his prior statements about the mechanics of the accident. In the end, we preferred to rely on the worker's more contemporaneous statements which indicated the worker slipped and fell on his grandson's toy rather than his subsequent claim that his right knee gave out as it was the one explanation initially given when the worker was unaware of the requirements for entitlement to benefits. Given the contradiction in the worker's testimony, and in the absence of any non-medical or medical evidence which recorded the worker stating his right knee gave out in February 2013, it is our view that the child's toy caused the worker to slip.

[25] We acknowledge that Dr. Pugh's 2015 report supports the worker's claim. Given his statement about the accident is at variance with the worker's prior 2014 statement, we placed no weight on Dr. Pugh's 2015 report because it was based on information supplied by the worker more than two years after the incident during the worker's dispute with the Board. As we preferred the worker's prior 2014 statement supports he slipped on a toy, we are satisfied that the worker's injuries in February 2013 were sustained as a result of a home accident due to a slip and fall accident not causally linked to the worker's right knee impairment. Accordingly, we find that the worker has no entitlement for injuries incurred in February 2013 under OPM Document No. 15-05-01.

DISPOSITION

[26] The appeal is denied.

DATED: May 15, 2018

SIGNED: J. Dimovski, B. Davis, K. Hoskin